

WIC Endorser & Proxies

Policy: WIC staff must identify an endorser for every WIC participant. The endorser is either the active participant (woman category only) or a primary caregiver of the WIC participant who usually brings the participant to WIC for certifications, recertifications, and nutrition education. The endorser represents and signs for the WIC participant(s) in qualifying them for eligibility. The endorser has the best knowledge of the participant's health/nutrition history and current lifestyle habits.

WIC endorsers may allow another individual to attend a WIC appointment as their proxy.

Regulation: CFR 246.7(2)(i), 7 CFR 246.2 Colorado WIC Policy

Procedure/Additional Guidance:

There are two categories of endorsers:

Primary Endorser

- **Women participants (pregnant, breastfeeding, or postpartum):** The participant must always serve as the primary endorser, regardless of age. If she is no longer an active WIC participant, she must remain listed as the primary endorser for her household. In situations where she will not serve as the primary endorser for her children, the children must be assigned to a separate household in Compass, with the new designated endorser added as the primary endorser.
- **Infants and children:** The primary endorser is typically a parent or legal guardian. In some cases, the primary endorser may be another caregiver (for example, a grandmother caring for a child while the mother is working).
 - When the primary endorser is not a parent or legal guardian, he or she must provide written documentation as to why they have been selected as an endorser. This documentation is scanned into the participant's Compass record or is maintained in a central file. Examples of acceptable documentation are:
 - Written permission - from the adult participant or parent naming the caretaker as endorser.
 - Self-statement - from a caregiver. In unusual situations, such as child abandonment, or the incarceration or incapacitation of the parent or legal guardian, the caregiver may write a self-statement describing the circumstances surrounding the parent or legal guardian and why they have been selected to be the endorser.

Additional Endorser

- Person designated by the primary endorser as a second person who can sign for the WIC participant(s) in qualifying them for eligibility. The additional endorser is typically the other parent or a legal guardian of the WIC participant. The additional endorser can be the child's primary caregiver.
- A woman who has previously or is currently a WIC participant cannot be changed to an additional endorser under the same Family Identification (FID) household in Compass (see *Primary Endorser, Women participants* section above, for requirements on assigning or maintaining the primary endorser in Compass).

Note: Pregnant, postpartum, and breastfeeding minors, whether they are in foster care or not, have the option to decide whether or not to add an additional endorser.

Endorsers' Rights and Responsibilities

Either endorser may participate in the participant's nutrition assessment and education, obtain food benefits, change WIC appointments, and update participant information. Both endorsers have ownership of the WIC participant's information and may receive copies of WIC participant information during the time period that each was an endorser without the consent of the other endorser. When an endorser represents a WIC participant, WIC staff and the endorser(s) agree to partner towards providing optimal WIC benefits to the participant. Responsibilities are identical for both types of endorser.

Procedure to Add an Additional Endorser

- WIC staff can decide whether or not to ask the primary endorser if they choose to identify the additional endorser.
- The primary endorser is not required to designate an additional endorser.



- When the primary endorser indicates that they would like to add an additional endorser, WIC staff enter the additional endorser's name on the Family panel. The endorser may designate an additional endorser at any time. The additional endorser does not need to be present.
 - When the additional endorser attends an appointment, they must show acceptable proof of identification, which may be captured on the Certification panel and/or the Food Benefits panel.
- By signing on the Certification panel during the participant's certification or recertification, the primary endorser/additional endorser acknowledges his/her Rights and Responsibilities.
- Either endorser's signature on the Food Benefits panel verifies receipt of food benefits and acknowledgement of the Rights and Responsibilities.
- In the majority of situations, the primary endorser decides whether to add or remove the additional endorser.

Changing Endorsers

Every effort should be made to maintain established endorser status. When either the primary or the additional endorsers are unable to attend a WIC appointment, it is best to designate a *proxy* as opposed to changing *endorsers*. WIC staff should problem-solve with the endorser before opting to change endorser (e.g., offer alternate appointment times, Education Choice, or a different clinic location, use a proxy, and/or an alternate shopper). Nevertheless, certain situations require changing the endorser (see *Primary Endorser*, *Women participants*, and *Additional Endorser* sections on page 1, for requirements on assigning or maintaining the primary endorser in Compass).

- **Primary Endorser Choice:** The primary endorser voluntarily requests a change or removal of either endorser by providing the WIC clinic staff signed and dated permission. Staff can request that the primary endorser present legal documentation before changing endorser status. Staff scan this written permission to relinquish/change endorser status into the participant's Compass record. When scanning is unavailable, this written permission is maintained in a WIC clinic central file. Proof of residence and income must be presented when the participant has moved and/or the economic unit has changed.
- **Change of Custody:** If at any time a caregiver or additional endorser arrives at the WIC clinic with legal proof of full (100%) custody of a child participant, endorser status may be changed with accompanying proof of identification. Proof of income and residence from the new endorser must also be provided if the participant has moved and/or the economic unit has changed. If the family unit previously had two endorsers, the endorser with full custody may choose to either maintain or remove the other endorser. When a caregiver provides legal proof of partial (less than 100%) custody, it is the caregiver's role to determine if one or both will be the WIC endorser. WIC staff should not take sides or make decisions regarding endorser status. In difficult situations, staff can refer caregivers to the Department of Human Services for assistance.
- **Foster Care:** A foster parent becomes the WIC endorser of a foster child with proof of custody by a welfare agency or Department of Human Services. If foster parent designation changes, the new foster parents become the new WIC endorser with proof of custody, income, residence, and identification. For specific procedures involving moving foster children and their eWIC cards between families in different situations, staff should refer to the How Do I section of the Mini-Manual.
- **Endorser is Unreachable:** In unusual situations such as child abandonment, or the incarceration, or serious illness of the endorser, an interim endorser can be designated. An interim endorser can be approved by the clinic supervisor if permission from the endorser is not obtainable. However, when a parent, who is not listed as the endorser or additional endorser, indicates the other parent (endorser) is not available due to child abandonment, incarceration, or serious illness, clinic staff must attempt to contact the endorser unless the endorser is deceased. However, if after attempted contacts with the endorser are unsuccessful, legal documentation is not required by the parent seeking WIC services unless custodial rights between the parents are in question. When custodial rights between the parents are NOT in question, the clinic supervisor may use professional discretion to add the other parent as an additional endorser without the permission of the endorser. This must be documented in Compass. When and if the endorser reestablishes caretaker responsibility of the child, he/she may remove the additional endorser. This does not apply if the current endorser is a non-parent, such as a foster or kinship caregiver. If the endorser is deceased and the other parent is seeking WIC services, the other parent should be added as an additional endorser to the original account. If the deceased parent was a participant, they should be documented in COMPASS as terminated - deceased on the certification panel.



Procedure to Change an Endorser:

- WIC staff should attempt to obtain written or verbal permission from the endorser, if possible, and scan or document this permission in Compass.
- In the event permission is not obtained from the endorser, the interim endorser must write a self-statement identifying him or herself as the primary caregiver of the child, relationship to the child and why the endorser is unavailable.
- The self-statement must be dated and scanned into Compass. A self-statement is not acceptable documentation of custody. (See Referrals to Assist with Legal Custody).
- The interim endorser shows proof of identification.
- WIC staff enter the interim endorser's name and proof of ID in the Comments/Alerts field on the Family panel and document the situation in Compass.
- The interim endorser must bring their proof of income to determine eligibility to complete recertification if needed.
- WIC staff determine if the current household eWIC card needs to be deactivated and a new card issued. Interim endorser signs electronically to indicate that he/she acknowledges that the WIC benefits have been issued.
 - Typically, one month's worth of food benefits is issued to the interim endorser until legal documentation of guardianship/custody is provided. The clinic supervisor can use professional discretion to allow an interim endorser to receive more than one month's benefits at a visit.
- WIC staff reviews the *Colorado WIC Food List & Shopping Guide*, explains how to use the eWIC card at the store, participants' Rights & Responsibilities, and the purpose of the WIC program.
- The caregiver will continue to be an interim endorser with the current endorser's name left on all WIC records.
- Upon providing legal documentation, the interim endorser may become the endorser, and up to three months of food benefits can be issued per visit. Once legal custody is established, the new endorser is added to Compass, and the child is retrieved into the new Family ID.
 - Acceptable proofs of guardianship/custody may include:
 - Legal custodial/guardianship agreement.
 - Documentation from the Department of Social Services, Department of Corrections, court orders, or a professional statement on institutional letterhead.
 - Documentation must reasonably establish the following:
 - The name of the child.
 - The name of the individual granted guardianship/custody.
 - The authority or agency that conferred guardianship/custody.
 - The effective start date of the custody change and, if applicable, the end date.

Referrals to Assist with Legal Custody

In situations where the endorser "abandons" the participant without leaving forwarding contact information, recommend to the present caregiver that it is to the child's benefit to identify who is legally responsible for the child. WIC can refer the family for assistance through programs such as the Legal Aid Society, Probate Court, a Chaplain or Information Officer at a jail, and the Department of Social Services.

Release of WIC Records to Endorser

The WIC Program releases participant records to the current primary and/or additional WIC endorser(s) only for that period of time they are the endorser. Endorser must show proof of identification to obtain the records. Records should not be released to others, including the Department of Social Services (DSS), without written approval from the endorser. Records of a child in foster care may only be released to DSS for the time while the child was in foster care. Staff may not release records to proxies, past or interim endorsers, relatives, or nonlegal guardians. Details of records inquiries and releases must be documented in the participant's care plan (see *Data Sharing for Participants and Applicant Data* policy in Section 4: Organization and Management).

WIC Proxies

Proxy means any person designated by a woman participant, or by a parent or caretaker of an infant or child participant, to obtain food benefits on behalf of a participant. Parents or caretakers applying on behalf of child and infant participants are not proxies.



The Role of the Proxy:

- The endorser/participant can choose a proxy to attend the WIC appointment and receive the household's food benefits on their behalf.
- A proxy can only pick-up benefits and receive nutrition education; they are not allowed to certify or recertify participants.
- Participant auto-terminated during a certification period may be reinstated with a Proxy.
- Use of a proxy is limited to twice in a six-month period. Professional discretion may be used to allow a proxy to attend more than twice in a six-month period. If a proxy is needed more than two times in a six-month certification, it is an indication for staff to problem solve with the endorser and determine if the endorser needs to be changed and/or determine if the participant is eligible for an Education Choice option for follow up visits.

Proxy Procedure:

- When a proxy is used, **issue 1-3 months'** food benefits (loaded to the household account).
 - Compass allows up to 3 proxies to be listed on the Family panel. If additional proxy names are needed, previously listed proxy names should be changed to "inactive."
1. Staff must verify endorser authorization by either a signed note, an email from the endorser's email address on file, or a verbal approval.
 2. The Proxy attending the WIC appointment shows proof of identification.
 3. WIC staff enters the proxy's name in the proxy field on the Family panel.
 4. WIC staff issues benefits. Proxy signs electronically or provides a verbal acknowledgement if remote to indicate that he/she acknowledges that the WIC benefits have been issued to the WIC participant's household account.
 5. WIC staff record the proxy's proof of identification in the food benefit screen in Compass.